

Vijaybhai Kalubhai Mandora vs Dakshaben W/O Vijaykumar Kalubhai ... on 9 December, 2021

Author: B.N. Karia

Bench: B.N. Karia

C/SCA/21388/2019

ORDER DATED: 09/12/2021

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/SPECIAL CIVIL APPLICATION NO. 21388 of 2019

With

CIVIL APPLICATION (FOR INTERIM RELIEF) NO. 1 of 2020

In R/SPECIAL CIVIL APPLICATION NO. 21388 of 2019

With

CIVIL APPLICATION (FOR VACATING STAY) NO. 1 of 2021

In R/SPECIAL CIVIL APPLICATION NO. 21388 of 2019

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VIJAYBHAI KALUBHAI MANDORA

Versus

DAKSHABEN W/O VIJAYKUMAR KALUBHAI MANDORA AND D/O

TRIBHOVANDAS PITAMBARDAS PADHIYAR

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Appearance:

MR PANKAJ S CHAUDHARY(3269) for the Petitioner(s) No. 1

GIRISH K PATEL(2770) for the Respondent(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE B.N. KARIA

Date : 09/12/2021

ORAL ORDER

By preferring this petition, petitioner has sought for following reliefs :

(A) Be pleased to issue a writ of certiorari and/or any other appropriate writ, order or direction to quash and set aside the order dated 14 th August , 2019 passed below the application at Exh. 180 in Regular Civil Appeal No. 42 of 2019, in the interest of justice;

(B) Pending admission, hearing and final disposal of present petition, Your Lordships be pleased to stay the execution, operation and implementation of the order dated

14th August 2019 passed below application at Exh. 180 in Regular Civil Appeal No. 42 of 2010 in the interest of justice.

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2. Heard learned advocate Mr. Pankaj Chaudhary appearing for the petitioner as well as learned Advocate Mr. Girish Patel for the respondent.

3. It is submitted by learned advocate for the petitioner that the impugned order passed below Exh. 180 dated 14.8.2019 is completely erroneous and contrary to the facts of the case. It is further submitted that in the divorce petition preferred by the petitioner, issue no.1 was framed as whether the applicant proves that during the married life of the applicant and after the birth of the son namely Tilak, the respondent has given mental and physical torture to him. After recording evidence, the learned Court below has answered positively. Learned advocate also referred Section 24 and 25 of the Hindu Marriage Act, 1955 and submitted that divorce was granted in favour of the petitioner and no expenses were allowed by the Court below in favour of the respondent and even the maintenance under the section.

4. It is further submitted that in the appeal proceedings, the amount of maintenance Rs 5000/- per month (by an order dated 12.10.2010), was increased to Rs 10,000/-. It was further submitted that two minor children namely Anjali and Tilak were residing with the petitioner and they started to study while living with the petitioner. All the expenses of school, transportation, food was borne by the present petitioner. It is further submitted that against the application preferred below Exh. 140 by the respondent wife, petitioner had filed objection vide application 182 and they were not C/SCA/21388/2019 ORDER DATED: 09/12/2021 considered by the court below. It is further submitted that though her daughter was studying with the mother, the petitioner had bore all the expenses of all her pocket money, clothes, and book. It is further submitted that the petitioner has also paid her daughter's college fees of the year 2019-2020. The petitioner had tried to take care from all angle even by taking loan from the bank. It is further submitted that the Court below has failed to consider the facts of case and however, impugned order was passed which is contrary to the facts and law. It is further submitted that the daughter is already major and so far as the son is concerned, he is on the verge of majority and his date of birth is 4.3.2002 and hence, it was requested by learned advocate appearing for the petitioner to quash and set aside the order dated 14.8.2019 passed below application Exh. 180 in Regular Civil Appeal no. 42 of 2010.

5. From the otherside the learned advocate appearing for the respondent has supported the reasons arrived at by the court below in increasing amount of maintenance to Rs 10,000/-. It is submitted that the petitioner is a builder and engaged in construction business. Referring the list of properties he has submitted that the petitioner is having 23 immovable properties. It is further submitted that both the children are at present staying with respondent and she is unable to maintain herself and the children as the order passed by the courts below is not complied with by the present petitioner to pay Rs 10,000/- as well as to deposit Rs 2,84,000/- towards the school fees, hostel fees of the son named Tilak. It is further submitted C/SCA/21388/2019 ORDER DATED: 09/12/2021 that the impugned order passed below Exh. 180 is not stayed. The respondent has filed application Exh 13 in

execution application to issue arrest warrant against the petitioner wherein the petitioner tried to avoid the service of process and has not complied with the order dated 14.8.2019. It is further submitted that on 11.2.2020, show cause notice was issued to the petitioner as to why he will not be sent to Civil prison and remain present. That the petitioner challenged the said order before this Court in Civil Application 1 of 2020 in SCA 21388 of 2019 on 20.2.2020 for stay of execution, implementation and operation of the order dated 14.8.2019 passed below Exh. 180 in Regular Civil Appeal 42 of 2010. It is further submitted that the trial court was pleased to issue an arrest warrant instead of sending the petitioner in Civil prison as per the provision of Order 21 Rule 37 of CPC. On a statement made by the petitioner that he was protected by this Court for a limited period. The respondent has described list of properties in his affidavit showing 23 immovable properties in favour of the petitioner. It is further submitted that the petitioner has many movable and immovable properties at various places and only a few properties could be traced by the respondent. It is further submitted that however, sufficient income is there on the part of the petitioner he is not depositing the school fees nor paying interim maintenance since 10.6.2019 onwards. It is requested by learned advocate appearing for the respondent to dismiss the petition.

6. Having heard learned advocate appearing for the C/SCA/21388/2019 ORDER DATED: 09/12/2021 respective parties, material documents and the perused the material placed on record it appears that in HMP No. 23 of 2006 preferred by the present petitioner under Section 13 of the Hindu Marriage Act, learned 4th Additional Chief Judicial Magistrate, Palanpur vide order dated 31.8.2010 was pleased to allow the petition by granting decree of divorce. As per the record in HMP No. 23 of 2006, respondent was granted Rs 5000/- by way of interim maintenance as per the order passed below Exh. 11 dated 19.9.2006. Against the judgment and order passed in HMP No. 23 of 2006, respondent preferred Regular Civil Appeal No. 42 of 2010 before the District Court. During the pendency of the appeal, vide application exh. 180 it was requested to increase interim maintenance wherein on 30.3.2012 learned Additional District Judge, Banaskantha, Palanpur was pleased to direct the petitioner to pay interim alimony of Rs 5000/- per month from the date of filing the petition on 12.10.2010. Thereafter the present petitioner approached this Court thereof by way of Special Civil Application No. 2546 of 2007 as he was permitted to visitation rights of his children. Different orders were passed by this Court on 22.6.2007 and 26.4.2007. Thereafter daughter Anjali started to live with the respondent from 15.4.2016. Their son at the relevant point of time was studying in Divine School at Mehsana as he was admitted on 7.5.2019. From the impugned order passed by the Appellate Court, it appears that a loan 1,20,000/- was availed by the present petitioner (183/3). Monthly installment of Rs 28,496/- was paid by the present petitioner. Another loan was also availed by the petitioner C/SCA/21388/2019 ORDER DATED: 09/12/2021 for a sum of Rs 11,50,000/-. Additional installment of Rs 70,000/- was paid by the present petitioner for a month. From another document mark 183/5, it appears that loan of Rs 21,10,000/- was received by the present petitioner. Considering the amount of loan received by the present petitioner and paying the huge amount of installment per month, financial capacity of the petitioner can be considered as very sound. As respondent's daughter is staying with the respondent and studying in college at present an amount of Rs 10,000/- ordered by the trial court per month under Sections 24 and 25 of the Hindu Marriage Act cannot be said to be illegal or improper as well as directing the present petitioner to pay Rs 2,84,800/- towards school fees and to pay expenses of the son namely Trilok. As there is no substance in the present petition, it is ordered to be dismissed.

7. Interim protection granted, if any, shall be vacated forthwith. The Executing Court shall proceed with the order passed below Exh. 20 dated 25.2.2021 forthwith.

8. In view of the order passed in the main matter Civil Applications does not survive and stands disposed of.

(B.N. KARIA, J) MARY VADAKKAN